

CAMBLIN VS. MOBILEONE, LLC, AN ARIZONA CORPORATION

CASE NUMBER: 26CV-0209779

Tentative Ruling on Motion to Enforce Settlement: Defendant MobileOne, LLC seeks enforcement of a settlement agreement between Plaintiff Joshua C. Camblin and Defendant. Despite being properly noticed, Plaintiff did not file an Opposition. The motion is based on a settlement agreement signed by Plaintiff and Defendant. Defendant has provided evidence that Plaintiff was contacted directly by a private investigator hired by Defendant who negotiated the settlement, which Plaintiff signed without his counsel.

“In representing a client, a lawyer shall not communicate directly or indirectly about the subject of the representation with a person the lawyer knows to be represented by another lawyer in the matter, unless the lawyer has the consent of the other lawyer.” Rule 4.2(a). Comment 3 reads as follows:

The prohibition against communicating “indirectly” with a person* represented by counsel in paragraph (a) is intended to address situations where a lawyer seeks to communicate with a represented person* through an intermediary such as an agent, investigator or the lawyer’s client. This rule, however, does not prevent represented persons* from communicating directly with one another with respect to the subject of the representation, nor does it prohibit a lawyer from advising a client concerning such a communication. A lawyer may also advise a client not to accept or engage in such communications. The rule also does not prohibit a lawyer who is a party to a legal matter from communicating on his or her own behalf with a represented person* in that matter.

The declarations provided by counsel and Mr. Ford are silent as to whether the contact with Plaintiff was made at direction of counsel or if Mr. Ford initiated contact on his own then informed counsel after the fact.

The Court notes that there is another case between the parties, *Camblin vs. MobileOne, LLC*, 207920 which is a wage and hour class action. In that matter, Defendant has filed a motion based on the same settlement agreement which is noticed for October 5, 2026 in Department 64. Dismissal of a party from a class action requires court approval. CRC 3.770. Additionally, the Court notes that § 6.1 of the agreement includes a representation by the Parties that no other cases between the two parties have been filed. As 207920 was already pending, this representation was clearly false.

Due to issues noted above, the Court will need further briefing and evidence in order to rule on the merits of the motion. Because the same agreement is being used to seek dismissal in both cases, the Court intends to issue an Order of Reassignment assigning 207920 to Department 63 so that the matters can be heard together. The Court requires appearance of both counsel at today’s hearing to discuss the issues noted above and select a future hearing date. **An appearance by both parties is necessary on today’s calendar.**

GARRIGUS VS. BLACH BEVERAGE, LLC

CASE NUMBER: 24CV-0206711

Tentative Ruling on Motion for Preliminary Approval of Class Action and PAGA Settlement: Plaintiffs Steven Garrigus and Kyren Cannaday brought this wage and hour class action and Private Attorneys General Act (“PAGA”) matter against Defendant Blach Beverage, LLC. The Second Amended Complaint filed April 15, 2026 is the operative pleading. The parties have settled the matter for a total of \$211,925.00 and seek preliminary approval by the Court.

The law favors the settlement of lawsuits, particularly in complex litigation, where they save time and resources. *Neary v. Regents of the University of California* (1992) 3 Cal. 4th 273, 277-281 (superseded by statute on other grounds). However, courts cannot automatically and instantly approve a proposed settlement or dismiss a class action suit, even if the representative plaintiff and defendant have agreed on the terms of such settlement or